

Andhra Pradesh Societies Registration (Andhra Pradesh Amendment) Act, 1984

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State of Andhra Pradesh - Act

Andhra Pradesh Societies Registration (Andhra Pradesh Amendment) Act, 1984

ANDHRA PRADESH

India

Andhra Pradesh Societies Registration (Andhra Pradesh Amendment) Act, 1984

Act 12 of 1984

Published on 2 December 1983

Commenced on 2 December 1983

[This is the version of this document from 2 December 1983.]

[Note: The original publication document is not available and this content could not be verified.]

Andhra Pradesh Societies Registration (Andhra Pradesh Amendment) Act, 1984

(Act

No. 12 of 1984

)

An Act further to amend the Societies Registration Act, 1860 and the Andhra Pradesh (Telangana Area) Public Societies Registration Act, 1350 F.

Be it enacted by the Legislature of the State of Andhra Pradesh in the Thirty-fifth Year of the Republic of India as follows:

1.

Short title and commencement:

(1)

This Act may be called the Andhra Pradesh Societies Registration (Andhra Pradesh Amendment) Act, 1984.

(2)

It shall be deemed to have come into force on the 2nd December, 1983.

2.

Amendment of Central Act XXI of 1860:

- In the Societies Registration Act, 1860 in application to the State of Andhra Pradesh.

(1)

after the preamble, the following shall be inserted, namely:— "Chapter-I General."

(2)

after Section 20, the following shall be inserted, namely:—

Chapter II

Special provisions in respect of societies financed wholly or substantially from the funds of the Government.

21.

Definitions:— In this Chapter:

(i)

"Government" means the State Government of Andhra Pradesh;

(ii)

"Society" means a Society wholly or substantially financed from out of the funds of the Government.

22.

Chapter to override other provisions of the Act:— The provisions of this Chapter shall have effect notwithstanding anything contained in Chapter I of this Act or any other law for the time being in force.

23.

Dissolution of Society:— (1) It shall be competent for the Government, by order and for reasons to be recorded in writing to dissolve a society with effect from such date as may be specified in the order:

Provided that the Government shall before issuing an order dissolving a Society, communicate to the governing body of the society the proposal to dissolve, fix a reasonable time for the governing body for making a representation against the proposal and consider its representation, if any:

Provided further that the Government may, after settling the liabilities, if any, of the dissolved Society, make over its properties, whether movable or immovable to any other Society having identical or similar objects, and where there is no such Society, the property shall vest in such officer or authority as may be specified by the Government in this behalf until a Society having identical or similar object is formed where after the properties shall stand transferred to such Society.

(2)

On the date fixed for the dissolution of a Society under sub-section (1), the registration of the Society shall stand cancelled and the Society shall cease to exist as a corporate body.

24.

Power to divide or amalgamate Societies:— (1) Where, in the opinion of the Government it is necessary to divide a Society or amalgamate two or more Societies, they may, by order and from a date fixed therein direct the division or amalgamation, as the case may be, and issue the necessary certificates of registration:

Provided that the Government shall before issuing an order either dividing a Society or amalgamating two or more Societies, communicate to the governing body or bodies concerned the proposal to divide or as the case may be to amalgamate the Society or Societies, fix a reasonable time for the governing body or bodies for making a representation against the proposal and consider the representations, if any, received from the body or bodies.

(2)

Where a Society is divided or where two or more Societies are amalgamated, the registration of the Society or Societies divided or as the case may be amalgamated shall stand cancelled and the concerned Society or Societies shall cease to exist as a corporate body or bodies.

(3)

The order referred to in sub-section (1) shall contain the particulars of constitution, authorities, property, rights and

interests, liabilities, duties and obligations of the Society or Societies concerned."

3.

Amendment of Act 1 of 1350 F:

- In the Andhra Pradesh (Telangana Area) Public Societies Registration Act, 1350 F.

(1)

after Section 1, the following shall be inserted, namely:

"Chapter-1 - General"

(2)

after Section 15, the following shall be inserted, namely:—

CHAPTER—II Special provisions in respect of Societies financed wholly or substantially from the funds of the Government

16.

Definitions:— In this Chapter,—

(i)

"Government" means the State Government of Andhra Pradesh;

(ii)

"Society" means a Society either wholly or substantially financed from out of the funds of the Government.

17.

Chapter to override other provisions of the Act:— The provisions of this Chapter shall have effect notwithstanding anything contained in Chapter I of this Act or any other law for the time being in force.

18.

Dissolution of Society:— (1) It shall be competent for the Government, by order and for reasons to be in writing, to dissolve a Society with effect from such date as may be specified in the order:

Provided that the Government shall before issuing an order dissolving a Society communicate to the Managing Committee of the Society the proposal to dissolve, fix a reasonable time for the Managing Committee for making a representation against the proposal and consider its representation, if any:

Provided further that the Government may, after settling the liabilities, if any, of the dissolved Society, make over its properties, whether movable or immovable to any other Society having identical or similar object, and where there is no such Society, the properties shall vest in such officer or authority as may be specified by the Government in this behalf until a Society having identical or similar objects is formed whereafter the properties shall stand transferred to such Society.

(2)

On the date fixed for the dissolution of a Society under sub-section (1) the registration of the Society shall stand cancelled and the Society shall cease to exist as a corporate body.

19.

Power to divide or amalgamate Societies:— Where, in the opinion of the State Government it is necessary to divide a Society or amalgamate two or more Societies they may, by order and from a date fixed therein direct the division or amalgamation, as the case may be and issue the necessary certificates of registration:

Provided that the Government shall before issuing an order either dividing a Society or amalgamating two or more Societies, communicate to the Managing Committee or Committees concerned the proposal to divide or as the case may be, to amalgamate the Society or Societies, fix a reasonable time for the Managing Committee or Committees for making a representation against the proposal and consider the representations if any received from the Committee or Committees.

(2)

Where a Society is divided or where two or more Societies are amalgamated, the registration of the Society or Societies divided or as the case may be amalgamated shall stand cancelled and the concerned Society or Societies shall cease to exist as corporate bodies.

(3)

The order referred to in sub-section (1) shall contain the particulars, of constitution, authorities, property, rights and interests, liabilities, duties and obligations of the Society or Societies concerned.

4.

Repeal of Ordinance 28 of 1983:

- The Andhra Pradesh Societies Registration (Andhra Pradesh Second Amendment) Ordinance, 1983 is hereby repealed.

Please Note:— The amendments made by this Act incorporated in Main Acts.

Notifications

Date of commencement of the Andhra Pradesh Societies Registration Act, 2001

[G.O.Ms.No. 742, Rev. (Regn. & Mandals), Dated 10.12.2001]

[Published in A.P. Gazette Pt. I, Ext. No. 502, Dated 10.12.2001.]

In exercise of the powers conferred by sub-section (3) of Section 1 of the Andhra Pradesh Societies Registration Act, 2001 (Andhra Pradesh Act No. 35 of 2001), the Governor of Andhra Pradesh hereby appoints the 10th December, 2001 as the date on which the said Act shall come into force.

Empowering the District Registrars to exercise the powers of a Registrar for Registration of Societies

[G.O.Ms.No. 744, Revenue (Regn. & Mandals), ch. 11.12.2001]

[Published in A.P. Gazette Pt. I, Ext. No. 505A, Dated 11.12.2001.]

In exercise of the powers conferred by clause (1) of Section 2 of the Andhra Pradesh Societies Registration Act, 2001, (Andhra Pradesh Act No. 35 of 2001) the Governor of Andhra Pradesh hereby empowers the District Registrars of the District concerned as specified below, shall exercise the powers of a Registrar under the said Act, for the Registration of documents of the District concerned for the purpose of Registration of Societies Registered under the said Act.

Sl. No.

Name of the Registration District.

Registering Authority

1

2

3

1.

Srikakulam

District Registrar, Srikakulam

2.

Vizianagaram

District Registrar, Vizianagaram.

3.

Visakhapatnam

District Registrar, Visakhapatnam.

4.

Eluru

District Registrar, Eluru.

5.

Bhimavaram

District Registrar, Bhimavaram.

6.

Kakinada

District Registrar, Kakinada.

7.

Rajahmundry

District Registrar, Rajahmundry

8.

Vijayawada

District Registrar, Vijayawada

9.

Krishna

District Registrar, Krishna

10.
Guntur
District Registrar, Guntur.
11.
Narasaraopet
District Registrar, Narasaraopet
12.
Prakasam
District Registrar, Prakasam.
13.
Nellore
District Registrar, Nellore.
14.
Chittoor
District Registrar, Chittoor.
15.
Sri Balaji
District Registrar, Sri Balaji
16.
Ananthapur
District Registrar, Ananthapur
17.
Cuddapah
District Registrar, Cuddapah
18.
Kurnool
District Registrar, Kurnool.
19.
Warangal
District Registrar, Warangal.
20.
Khammam
District Registrar, Khammam.
21.
Adilabad
District Registrar, Adilabad.
22.
Karimnagar
District Registrar, Karimnagar
23.
Nizamabad
District Registrar, Nizamabad
24.
Medak
District Registrar, Medak
25.
Mahaboobnagar
District Registrar, Mahaboobnagar.
26.
Nalgonda
District Registrar, Nalgonda.

27.

Ranga Reddy

District Registrar, Ranga Reddy

28.

Hyderabad

District Registrar, Hyderabad.

Table of fees payable for Registration of Societies

[G.O.Ms.No.745, Rev. (Regn. & Mandals), Dated 11.12.2001]

[Published in A.P. Gazette Pt. I, Ext. No. 505-B Dated 11.12.2001.]

In exercise of the powers conferred by sub-section (1) of Section 29 of the Andhra Pradesh Societies Registration Act, 2001 (Andhra Pradesh Act No. 35 of 2001), the Governor of Andhra Pradesh hereby notifies the following Table of Fees payable by the Societies as required under subsection (2) thereof.

(a)

For registration of a Society

Rs. 200.00

(b)

For filing of any document required under this Act under

Sections 8, 9, 21, 24 and 26

Rs. 100.00

(c)

For an appeal under sub-section (3) of Section 6

Rs. 100.00

(d)

For issue of duplicate copy of Certificate of Registration and

issue of Certificate Registration on change of name of the

Society.

Rs. 100.00

(e)

For issue of certified copy or extract of any document in the custody of Registrar (upto 5 pages).

Rs. 10.00

(f)

For every extra page

Rs. 50.00

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